

26CV01479 James F. Scafide, etc., v. Anthony Castelo

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-09-04

Motion: 1) Demurrer of Plaintiff to Answer; 2) Motion of Plaintiff to Strike the Answer; 3) Order to Show Cause re: Sanctions

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Tentative Ruling: James F. Scafide, etc., v. Anthony Castelo

Case Number

26CV01479

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 09/04/2026 - 10:00

Nature of Proceedings

1) Demurrer of Plaintiff to Answer; 2) Motion of Plaintiff to Strike the Answer; 3) Order to Show Cause re: Sanctions

Tentative Ruling

The demurrer to the answer is overruled.

The motion to strike portions of defendant's answer is denied.

The Order to Show Cause re: Sanctions is taken off-calendar.

Background:

On March 5, 2026, plaintiff James F. Scafide, as successor trustee of the Jill Dore Kent Living Trust, (Scafide) filed a verified complaint in this matter against defendant Anthony Castelo alleging causes of action for breach of contract, voluntary waste,

and declaratory relief.

As alleged in the complaint:

Scafide, in the duly appointed and acting Successor Trustee of the Jill Dore Kent Living Trust, which holds legal title to real property located at 14 E. Sola Street, Santa Barbara (the "property"). (Compl., ¶ 2.) Scafide is the successor in interest to the Housing Provider identified in the lease, and at all times, Martin Mielko acted solely as the authorized agent for the Trust. (Ibid.) Scafide's authority as Successor Trustee was established and recorded in the Official Records of Santa Barbara County on June 6, 2025. (Ibid.)

Defendant is, and at all times mentioned was, a resident of Unit No. 2 of the property. (Compl., ¶ 4.)

On February 1, 2022, Scafide's predecessor and defendant entered into a written Residential Lease Agreement for Unit 2, with defendant to pay monthly rent in the amount of \$1,975.00. (Compl., ¶ 10.) Beginning in October 2025, and continuing through the present, defendant has failed and refused to pay rent. (Compl., ¶ 11.)

In December 2025, a plumbing issue occurred at the property and rather than permitting the Trust's authorized agents to remediate the issue, defendant, an unlicensed contractor, undertook unauthorized self-help repairs. (Compl., ¶ 12.) In doing so, without the knowledge or consent of the Trustee, and without obtaining required permits, defendant gutted a substantial portion of the property to the studs, removing drywall, insulation, and flooring. (Compl., ¶ 13.) The property remains in a state of structural demolition, rendered unrentable and in violation of local building codes, due solely to the unauthorized actions of defendant. (Compl., ¶ 14.)

By removing and disposing of the drywall, ceiling, and flooring, defendant intentionally destroyed the physical evidence necessary to determine the actual extent of the plumbing issue and any secondary conditions. (Compl., ¶ 15.) The spoliation of evidence was performed in bad faith to prevent the Trust from conducting a professional inspection and to inflate defendant's claims of uninhabitability in a collateral Small Claims action. (Compl., ¶ 16.)

Because the demolition was performed without permits, the City of Santa Barbara no requires as-built permit applications, structural engineering certifications, and potential destructive testing to verify the integrity of the studs exposed by defendant. (Compl., ¶ 17.)

On March 30, 2026, defendant filed his answer to the complaint, admitting some allegations (¶ 3) and denying others (attachment 3b.(1)). As will be discussed below, some of the "denials" are not actually denials, but rather explanations and comments. Defendant, on "attachment 4" to the answer, also asserts the following affirmative defenses: (1) Lack of Consideration, (2) Failure of Consideration, (3) Failure of Condition Precedent, (4) Quantum Meruit, (5) Offset, (6) No Damage to Plaintiff, (7) Lack of Standing, (8) Unclean Hands, (9) Improper Notice of Breach, (10) Frustration of Purpose, (11) Equitable Estoppel, (12) Unjust Enrichment, (13) Substantial Compliance, (14) Prevention of Performance, (15) Fraud, Deceit, or Misrepresentation by Plaintiff, and (16) Failure to Mitigate Damages.

On April 10, 2026, Scafide filed his original demurrer to the answer as well as a motion to strike portions of defendant's answer. On July 10, 2026, the court continued the hearing on the demurrer and motion to strike to September 4, 2026, to permit effective service. The court also set an order to show cause why sanctions should not be imposed for use of Artificial Intelligence.

On August 26, 2026, Scafide filed a declaration, under penalty of perjury, wherein he declares: "I did not use artificial intelligence tools to draft or edit the original demurrer or motion to strike. Any imprecise references were my own drafting errors arising from ambiguity in Defendant's Answer, from ambiguity in the non-official attachment to Defendant's Answer, and from my attempt to address issues in an abundance of caution." Based on this declaration, the order to show cause will be taken off-calendar.

On July 15, 2026, Scafide filed his amended demurrer and amended motion to strike portions of defendant's answer. The documents, along with the original demurrer, original motion to strike, notice of continued hearing date, declarations, and other relevant documents were properly and timely served on defendant.

Importantly, Scafide filed an amended demurrer and amended motion to strike rather than a supplement to the demurrer and a supplement to the motion to strike. An amended demurrer or motion supersedes the original, rendering the original a nullity. The only documents that can be considered are the amended documents.

Defendant has not filed opposition or any other response to the demurrer or the motion to strike.

On August 26, 2026, Scafide filed an omnibus reply to the demurrer and the motion to strike. As no oppositions were filed, any arguments contained in the reply would constitute new matter and will not be considered in ruling on the demurrer or the motion to strike.

Analysis:

Demurrer

"A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds:

"(a) The answer does not state facts sufficient to constitute a defense.

"(b) The answer is uncertain. As used in this subdivision, 'uncertain' includes ambiguous and unintelligible.

"(c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral." (Code Civ. Proc. § 430.20.)

"Under general rules of civil procedure, an answer must contain '[t]he general or specific denial of the material allegations of the complaint controverted by the defendant' and '[a] statement of any new matter constituting a defense.' (Code Civ. Proc., § 431.30, subd. (b)(1) & (2).) 'The phrase "new matter" refers to something relied on by a defendant which is not put in issue by the plaintiff. [Citation.] Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as "new matter." [Citation.]" (Quantification Settlement Agreement Cases (2011) 201 Cal.App.4th 758, 812.) "Such 'new matter' is also known as 'an affirmative defense.' [Citation.] Affirmative defenses must not be pled as 'terse legal conclusions,' but 'rather . . . as facts "averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint." ' [Citation.]" (Id. at pp. 812-813.)

"Unlike the usual general demurrer to a complaint the inquiry is not into the statement of a cause of action. Instead it is whether the answer raises a defense to the plaintiff's stated cause of action." (Timberidge Enterprises, Inc. v. City of Santa Rosa (1978) 86 Cal.App.3d 873, 879-880.) "The allegations of the pleading demurred to must be regarded as true [citations]; a demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading [citations], or the construction placed on an instrument pleaded therein [citation], or facts impossible in law [citation], or allegations contrary to facts of which a court may take judicial knowledge." (South Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732.)

"There are, however, certain important differences between these two kinds of demurrer. An important difference is that in the case of a demurrer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer. [Citations.] This requirement, however, does not mean that the allegations of the complaint, if denied, are to be taken as true, the rule being that the demurrer to the answer admits all issuable facts pleaded therein and eliminates all allegations of the complaint denied by the answer. [Citations.] Another rule, particularly applicable to the case of a demurrer to the answer, is that each so-called defense must be considered separately without regard to any other defense. [Citations.] Accordingly, a 'separately stated defense or counterclaim which is sufficient in form and substance when viewed in isolation does not become insufficient when, upon looking at the answer as a whole, that defense or counterclaim appears inconsistent with or repugnant to other parts of the answer.' [Citations.]" (South Shore Land Co. v. Petersen, supra, 226 Cal.App.2d at pp. 733-734, fn. omitted.)

Scafide's first argument is that the answer fails to plead facts constituting a defense and lacks specificity in asserting fraud. (Amended Demurrer, p. 5, l. 19 - p. 6, l. 3.) Presumably, Scafide is claiming that none of the affirmative defenses plead facts constituting a defense, and the lack of specificity argument refers to defendant's fifteenth affirmative defense of "Fraud, Deceit, or Misrepresentation by Plaintiff." That affirmative defense states: "The defendant asserts that the plaintiff or plaintiff's assignor obtained the defendant's consent to the contract or transaction through fraud, deceit, or misrepresentation by the plaintiff or plaintiff's assignor, and that as a result the contract is invalid." (Answer, attachment 4.) [Note: because the affirmative defenses are not numbered, as required by California Rules of Court, rule 2.112, specific reference to the locations of the defenses is difficult.]

The main issue with Scafide's first argument is that it is not entirely clear if the argument pertains to the additional affirmative defenses as well as to the fraud affirmative defense. No specific affirmative defenses are referenced in the notice of demurrer, and the argument section does not list any of the specific affirmative defenses. The entire argument is:

"Defendant's unnumbered, non-official attachment lists boilerplate affirmative defenses as headings with generalized assertions and without factual allegations tailored to this dispute. (Answer, dated March 30, 2026, pp. 5-8). This is insufficient to constitute a defense under Code of Civil Procedure section 430.20(a). (Westly v. California Public Employees' Retirement System Bd. of Administration (2003) 105 Cal.App.4th 1095, 1118; Department of Finance v. City of Merced (2019) 33 Cal.App.5th 286, 294.)

With respect to fraud, Defendant must allege the specific misrepresentation, who made it, to whom, when, where, and how reliance and resulting damage occurred. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) Here, the defense is merely conclusory and therefore fails to state facts sufficient to constitute a defense under Code of Civil Procedure section 430.20(a)." (Demurrer, p. 5, l. 21 - p. 6, l. 3.)

The court agrees with Scafide regarding the requirements for pleading fraud. However: "[I]f one of the defenses or counterclaims is free from the objections urged by demurrer, then a demurrer to the entire answer must be overruled." (South Shore Land Co. v. Petersen, supra, 226 Cal.App.2d at p. 734.)

Here, there are 16 affirmative defenses, 15 of which are not specifically addressed. It is not the court's burden to determine how the argument would apply to each of the affirmative defenses. It is Scafide's obligation to make cogent argument, supported by persuasive authority, as to why the argument applies to each individual affirmative defense. Because Scafide has presented no cogent argument as to why the first argument would apply to each of the 16 causes of action, Scafide has failed to meet his burden of proof, and the demurrer will not be sustained on those grounds.

Scafide's next argument is that the answer is uncertain because it contains negative pregnant. The entire argument is:

"Defendant's blanket response to compound allegations (Answer, dated March 30, 2026, p. 3), operates as an uncertain negative pregnant. A negative pregnant is a procedural admission that at least some of the facts attacked by the blanket denial are true. (Jordan v. Jordan (1943) 58 Cal.App.2d 371, 374.) Here, Defendant's Attachment 3b.(1) asserts " 'All allegations are false based on evidence. Withholding rent is an acceptable response to habitability issues,' " without

separating the distinct sub-allegations of nonpayment, demolition, and sanitation. (Answer, dated March 30, 2026, p. 3.) Therefore, blanket response to compound allegations is uncertain and subject to demurrer under Code of Civil Procedure section 430.20(b)." (Demurrer, p. 6, ll. 4-12.)

If Scafide's argument is correct, it simply means that some of the allegations of the complaint are admittedly true.

"(a) Every material allegation of the complaint or cross-complaint, not controverted by the answer, shall, for the purposes of the action, be taken as true.

(b) The statement of any new matter in the answer, in avoidance or constituting a defense, shall, on the trial, be deemed controverted by the opposite party." (Code Civ. Proc., § 431.20.)

"A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

As there are specific admissions, and specific denials, contained in the answer, the use of a negative pregnant does not make the entire answer so uncertain as to make it subject to demurrer. The demurrer will not be sustained based on Scafide's second argument. Any ambiguities that exist in this regard can be clarified by way of the discovery procedures.

Scafide's third argument is that the answer improperly mixes new matters with denials, resulting in uncertainty. The entire argument is:

"Defendant's Attachment 3b.(1) asserts that acts " 'were done with permission by Martin Mielko,' " that " 'December 2025' " rent was " 'waived,' " that he was given " 'implied authority' " to begin work, and that conditions were due to habitability and a sewer leak from an upstairs unit, all within narrative denials referencing Complaint paragraphs 11, 13, 14, 17, and 22. (Answer, dated March 30, 2026, p. 3.) Under Code of Civil Procedure section § 431.30(b)(2), these statements are new matters constituting affirmative defenses and therefore should not be intermixed with denials." (Demurrer, p. 6, ll. 13-21.)

Scafide sets forth no legal authorities supporting his argument other than the Code of Civil Procedure section. Again, the cited language of the answer does not make the answer so uncertain that the demurrer should be sustained. The demurrer will not be sustained based on the third argument.

Scafide's fourth argument is that defendant's assertion of implied authority is ambiguous. The entire argument is:

"Defendant's Answer fails to clarify the nature and source of authority and whether any agreement was oral or written. Defendant states he had " 'implied authority to begin work' " in but does not identify a writing or specific grant of permission. (Answer, dated March 30, 2026, p. 3.) This is subject to demurrer for uncertainty and for failure to identify the alleged contract as oral or written pursuant to Code of Civil Procedure sections 430.20(b) and 430.20(c)." (Demurrer, p. 6, ll. 22-28.)

Again, Scafide fails to set forth any persuasive legal authority as to why this lack of specific information, regarding permission, results in the entire answer being amenable to demurrer. The demurrer will not be sustained based on the fourth argument.

Scafide's fifth, and final, argument is that defendant's unnumbered affirmative defenses on a non-official attachment create uncertainty in the answer. The entire argument is:

"Court's Tentative Ruling for the July 10, 2026, Demurrer and Motion to Strike Hearing states that Defendant's affirmative defenses are not numbered and that the non-official attachment violates California Rules of Court, rule 2.112(1). Therefore, Defendant's " 'Affirmative Defenses Attachment' " is subject to demurrer under Code of Civil Procedure section 430.20(b)."

While it is true that the court commented on the failure of defendant to comply with California Rule of Court, rule 2.112(1), by failing to number the affirmative defenses, which made citation to the affirmative defenses a bit difficult to understand, the lack of numbering does not render the answer uncertain in any way. The demurrer will not be sustained based on the fifth argument.

The demurrer to the answer will be overruled.

Motion to Strike

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

"(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

"(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.)

"In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.)

"[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

"The grounds for a motion to strike any false or improper matter inserted in a pleading must appear on the face of the pleading or from judicially noticeable material." (Spears v. Spears (2023) 97 Cal.App.5th 1294, 1301, fn. 5.)

Scafide seeks to strike:

"The denial in Attachment 3b.(1) to Paragraph 1 of the Verified Complaint that disputes Plaintiff's status as Successor Trustee, as a sham denial of a matter established of public record. Defendant's Attachment 3b.(1) states " 'Paragraph 1 is false.' " The Complaint alleges Plaintiff's trustee status supported by recorded Instrument No. 2025-0016696." and

"The statements directed at Plaintiff within Defendant's " 'Regarding the Prayer of Relief' " section in Attachment 3b.(1), including characterizations of Plaintiff's " 'inexperience' " and references to " 'personal safety,' " as improper and scandalous matter not constituting a responsive pleading to the Prayer for Relief. (Answer, dated March 30, 2026, p. 3.)"

The denial of paragraph 1 of the complaint does not only include a denial that Scafide is the Successor Trustee.

Paragraph 1 of the complaint alleges:

"This action is brought on behalf of James F. Scafide ("Plaintiff"), Successor Trustee of the Jill Dore Kent Living Trust ("Trust"), see against Anthony Costello ("Defendant"), a tenant under the lease ("Lease"), see Exhibit B ("Tenant") in real property located at 14 E. Sola Street, Apt. 2, Santa Barbara, California ("Real Property"), and in which Plaintiff alleges that Defendant failed to pay rent that is due under the lease and took it upon himself, without authorization from the Trust, to remove portions of walls, ceilings, and flooring from the Real Property, and disposed of the debris from such demolition, all done by an unlicensed person without permission from the Plaintiff or a permit from the City of Santa Barbara."

Scafide argues that the denial of paragraph 1 is a sham denial subject to being stricken. There are issues with the request that the denial of the entire paragraph be stricken.

"(b) The answer to a complaint shall contain:

"(1) The general or specific denial of the material allegations of the complaint controverted by the defendant.

"(2) A statement of any new matter constituting a defense." (Code Civ. Proc., § 431.30, subd. (b).)

"If the complaint is verified, . . . , the denial of the allegations shall be made positively or according to the information and belief of the defendant." (Code Civ. Proc., § 431.30, subd. (d).)

Besides the fact that there are other allegations of paragraph 1 that were denied besides Scafide's trustee status, the Affidavit of Death of Trustee and Consent to Serve as Successor Trustee, recorded as Instrument No. 2025-0016696 in the Official Records of the County of Santa Barbara, of which this court took judicial notice of on July 29, 2026, does not affirmatively establish that Scafide was Trustee on March 30, 2026, the date that the answer was filed. The document was executed on May 15, 2025, which is nearly a year before the answer was filed. The court will not strike the denial of an allegation, upon information and belief, that may or may not be accurate.

The other items Scafide seeks to have stricken involve defendants use of the words "inexperience" and "personal safety."

First, the term "personal safety" does not appear anywhere in the "Regarding Prayer for Relief" section. The only place it appears is in response to paragraph No. 29 of the complaint. Defendant pleads: "Inhabitability caused by sewage and neglect by trust and agent, Martin Mielko. My actions were purely remedial construction for my personal safety."

There is nothing "scandalous" or "irrelevant" about the use of the term "personal safety." It will not be stricken.

As for the term "inexperienced" that Scafide requests be stricken from the answer:

Scafide misinterprets the terms as "scandalous and irrelevant." The relevant portions of the paragraph states that: "Scafide is inexperienced with the property . . ." (Italics added.) Again, there is nothing scandalous or irrelevant about the use of the term, and there is nothing that the court can consider that affirmatively establishes that Scafide was experienced with the property. The motion to strike portions of defendant's answer will be denied.

Judges

Judge Donna D. Geck

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